

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
August 13, 2026
8:30 AM/1:30 PM

9. MICHAEL L. SOUDERS V. DONNA JUNE SOUDERS

25FL0270

On May 20, 2026, Respondent filed a Request for Order (RFO) seeking an appraisal of the marital property and sanctions. All required documents were served on May 21st.

Petitioner has not filed a Responsive Declaration to Request for Order. Where a party fails to timely file opposition papers the court, in its discretion, may treat said failure “as an admission that the motion or other application is meritorious.” El Dorado County, Local Rule 7.10.02(C). Here, the RFO was timely and properly served on Petitioner. He had notice of the pending requests and chose not to file an opposition to the RFO. As such, the court finds good cause to treat his failure to do so as an admission that the claims made in the RFO are meritorious.

Respondent is requesting to have the marital residence, located at 4661 Consumnes View Trail, appraised by a licensed real estate appraiser.

Respondent’s request for an appraisal is granted. The parties are ordered to have the property located at 4661 Consumnes View Trail appraised by a jointly selected, licensed real estate appraiser. If the parties cannot mutually agree on an appraiser by August 18, 2026, then Respondent shall select the appraiser. The parties are ordered to fully cooperate with scheduling and providing access to the property. The cost of the appraisal shall be advanced by Petitioner, subject to reallocation.

The court is reserving on Respondent’s request for sanctions until the time of trial.

Respondent is directed to prepare the Findings and Orders After Hearing (FOAH); however, this order is effective immediately upon the court’s adoption of the tentative ruling and is not conditioned on the preparation of the FOAH.

TENTATIVE RULING #9: RESPONDENT’S REQUEST FOR AN APPRAISAL IS GRANTED. THE PARTIES ARE ORDERED TO HAVE THE PROPERTY LOCATED AT 4661 CONSUMNES VIEW TRAIL APPRAISED BY A JOINTLY SELECTED, LICENSED REAL ESTATE APPRAISER. IF THE PARTIES CANNOT MUTUALLY AGREE ON AN APPRAISER BY AUGUST 18, 2026, THEN RESPONDENT SHALL SELECT THE APPRAISER. THE PARTIES ARE ORDERED TO FULLY COOPERATE WITH SCHEDULING AND PROVIDING ACCESS TO THE PROPERTY. THE COST OF THE APPRAISAL SHALL BE ADVANCED BY PETITIONER, SUBJECT TO REALLOCATION.

THE COURT IS RESERVING ON RESPONDENT’S REQUEST FOR SANCTIONS UNTIL THE TIME OF TRIAL.

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RESPONDENT IS DIRECTED TO PREPARE THE FINDINGS AND ORDERS AFTER HEARING (FOAH); HOWEVER, THIS ORDER IS EFFECTIVE IMMEDIATELY UPON THE COURT'S ADOPTION OF THE TENTATIVE RULING AND IS NOT CONDITIONED ON THE PREPARATION OF THE FOAH.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO* LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.